



IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

908 PUBLIC INTEREST LITIGATION NO. 55 OF 2018

HINDU JANJAGRUTI SAMITI REGISTERED PUBLIC CHARITABLE TRUST

REPRESENTED BY PRIYANKA AVINASH LONE

VERSUS

THE STATE OF MAHARASHTRA AND OTHERS

...

Mr. S.M. Kulkarni, Advocate for petitioner

Miss. Neha B. Kamble, AGP for respondent Nos.1 to 5

...

CORAM : SMT. VIBHA KANKANWADI &
HITEN S. VENEGAVKAR, JJ.

DATE : 26th FEBRUARY, 2026

ORDER :

. Present petition has been filed for following reliefs :

“(A) This Hon’ble Court be pleased to order / direct the respondents to call for reports of action taken by the two Committees i.e. Committee headed by Collector and Committee headed by Dr. Lahane.

(B) This Hon’ble Court be pleased to order the respondents to take all necessary steps to make these Committees functional and active to

execute the scheme for the weaker section and indigent persons.

(C) This Hon'ble Court be pleased to order the respondents to hold the requisite internal / departmental inquiries for fixing accountability on the officials and public authorities who have failed in discharging their duties and take appropriate proceedings including disciplinary action against the concerned officers of the respondents as also further necessary proceedings in appropriate civil / criminal forums / Courts as is deemed proper and necessary.

(D) This Hon'ble Court be pleased to order respondents to take all necessary and effective steps for implementation of the scheme passed in Writ Petition (PIL) No.3132 of 2004 on 14.10.2005."

2 Heard learned Advocate Mr. S.M. Kulkarni for petitioner and learned AGP Miss. Neha B. Kamble for respondent Nos.1 to 5.

3 It appears that petitioner was relying upon the order passed in Public Interest Litigation No.3132 of 2004, wherein scheme directing medical centres run by the Public Trusts to reserved 10% of its total capacity for free treatment for indigent patients and further 10% for total capacity for treatment in concessional rates were given. According to petitioner, the scheme was to be implemented sometime in 2006-2007, however, it has not been implemented in its letter and spirit and, therefore, by collecting some data under the Right to Information Act it was contended that the

committees are not properly functioning and the committee headed by Dr. Lahane has given certain suggestions; yet those have not been implemented. Hence, the petition.

4 Learned Advocate for petitioner brings to our notice that Hon'ble Supreme Court has taken cognizance by way of Public Interest Litigation in respect of treatment for economically weaker sections and below poverty lines, patients in private hospitals built on Government land or with Government concessions and then the response has been sought from the State as well as the Union Territories. Upon his statement we directed learned AGP to take instructions in respect of petition which was before the Principal Seat. Learned AGP then places on record the copy of order dated 01.08.2025 in Writ Petition No.10189 of 2025, whereby the challenge to the Government Resolution dated 21.04.2025 was not considered i.e. the writ petition came to be disposed of. In the said order we find that the coordinate Bench has taken note of the said Government Resolution and it was directed that the representation of petitioners would be decided by the competent authority. Though the challenge to the Government Resolution has been kept open, perusal of the said resolution would show that the said resolution was for a particular purpose and it was after the event that had taken place at Dinanath Mangeshkar Hospital, Pune, but it takes note of the directions of

this Court for the implementation of the scheme. It says, “मा. उच्च न्यायालयाच्या आदेशानुसार मंजूर करण्यात आलेल्या निर्धन व दुर्बल घटकांतील रुग्णांसाठीच्या धर्मादाय रुग्णालय योजनेची प्रभावी अंमलबजावणी करण्याकरिता सर्व धर्मादाय रुग्णालयांना धर्मादाय आयुक्तांनी सूचना द्याव्यात.” The said Government Resolution also takes note of other schemes and then it appears that some online application or portal was directed to be opened which would help such patients to get admission in such hospitals where the seats are to be reserved. The said Government Resolution also then takes note of the treatment to be given in such charitable hospitals. At this stage, we are unable to get the point on which the said Government Resolution was challenged, but certainly the purpose for which the present petition has been filed appears to have been covered under the said Government Resolution dated 21.04.2025. The petitioner wants the implementation of the order in Writ Petition (PIL) No.3132 of 2004 order dated 14.10.2005 which is also reflected in the Government Resolution dated 21.04.2025. Further, in view of statement that even Hon’ble Supreme Court has now taken cognizance of the point regarding matter of free treatment for economically weaker sections and below poverty line patients in private hospitals built on Government land or with Government Concessions. We find that we should not take cognizance of the point raised. We reiterate that it is either already covered under the orders of previous PIL and Government Resolutions dated 21.04.2025 and

also the possibility that after the decision in PIL on 14.10.2025 there would have been a Government Resolution and also the fact that now the Hon'ble Supreme Court has taken cognizance of the same. Hence, with these observations, we **dispose of** the writ petition.

(HITEN S. VENEGAVKAR, J.)

(SMT. VIBHA KANKANWADI, J.)

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